

The Duty of the Senior Advocate of Nigeria to the Society and the Profession¹

The rank of Senior Advocate of Nigeria is a privilege conferred on members of the legal profession who have excelled in the practice of law. The Rules of Professional Conduct for Legal Practitioners, 2023 provide a guide as to some of the expectations of a Senior Advocate of Nigeria.

Rule 1² is the foundation and states thus:

*“1. A lawyer **shall uphold and observe the rule of law, promote, and foster the course of justice, maintain a high standard of professional conduct, and shall not engage in any conduct which is unbecoming of a legal practitioner.**”*

Legal Practitioners who have distinguished themselves and have excelled in the profession are subsequently conferred with the rank because, they are lawyers who, as stated in Paragraph 1(c) of the Guidelines for the Conferment of the Rank, have:³

“... made significant contributions to the development of law and the legal profession in Nigeria.”

The expectations of Senior Advocates of Nigeria to the profession and the society can be further seen in paragraphs 2(a) and 2(f) of the said Guidelines which set out the following:

*“(a). the award shall be an independent indication of excellence in the legal profession and provide a public identification of advocates whose standing and achievements would justify **an expectation on the part of clients, the judiciary and the public** that they can provide outstanding services as advocates and advisers in the **overall interest of administration of justice**;*

(f) show observance of the Rules of Professional Conduct and Etiquette at the Bar.”

Thus, from the Guidelines conferees would have been evaluated on their leadership qualities and loyalty to the profession in various ways, including:

1. Paying consistently as at and when due bar practicing fees, membership dues to the local branch of the Nigerian Bar Association to which the person belongs⁴.
2. Handling at least 3 *pro bono* cases⁵.

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² Rules of Professional Conduct for Legal Practitioners, 2023

³ 2022 Guidelines for the Conferment of the Rank of Senior Advocate of Nigeria and For Related Matters.

⁴ Paragraph 8(5)(a) of the Guidelines.

⁵ Paragraph 8(5)(b) of the Guidelines.

3. Paying their taxes as and when due, including PAYEE.⁶
4. Having in full time employment not less than 5 (five) full time legal practitioners in your employment⁷.

Consequently, the Senior Advocate of Nigeria is expected not just to be an outstanding lawyer but a person of high integrity and character, likened to a statesman in Nigeria. This shows that while the rank is an indication of excellence it is also a sign that the profession expects more from Senior Advocates of Nigeria⁸ and that they are expected to contribute positively to the growth of the profession and the society at large.

From the Rules of Professional Conduct, some of what is expected, can be seen from Rule 15 – i.e. representing your clients within the boundaries of the law and refusing to aid or participate in conduct that you believe to be unlawful even if there is argument in support that the conduct is legal.

Professor Fidelis Oditah, KC, SAN⁹ in his paper “the Evolving Role of Senior Advocates in the Administration of Justice and Nation Building”¹⁰ opined that Senior Advocates have five critical roles in nation building. They are:

1. To assist the court to achieve the objectives of civil and criminal litigation.
2. To provide leadership in and out of court.
3. As role models, they must mentor and groom younger members of the profession directly through mentorship schemes and indirectly through the examples they provide.
4. To contribute to the development of the profession. Ensuring the legal profession thrives and grows by defining a common purpose by articulating what is acceptable, what is not and by developing effective regulations that ensure infractions are sanctioned accordingly.
5. Providing a pool from which judges of superior courts in Nigeria can be appointed.

Chief T. J. Onomigbo Okpoko, SAN, OON at a special court session to mark the commencement of the legal year had the following to say¹¹, during his speech:

⁶ Paragraph 14.

⁷ Paragraph 22.

⁸ THE SENIOR ADVOCATE OF NIGERIA: PILLAR OR PREDATOR? By- Oluwemimo Ogunde SAN - Lecture delivered on 1st October, 2018 on the occasion of the reception for Chief Wale Taiwo SAN on his elevation to the rank of Senior Advocate of Nigeria.

https://www.facebook.com/permalink.php/?story_fbid=1885716111483166&id=646255098762613

⁹ Visiting Professor of Law, University of Oxford.

¹⁰ A Lecture delivered at the SAN Maiden Annual Lecture on 28 June 2018 at Intercontinental Hotel Lagos, Nigeria.

¹¹ <https://thompsonokpoko.com.ng/speech-presented-on-behalf-of-the-body-of-senior-advocates-of-nigeria/>

“...Your recognition as a member of this elite group, imposes on you, the status of a leader at the Bar. People will look on you from today henceforth as a special lawyer and because of your new status, expectation of good conduct expected of a Gentleman at the Bar will be very highly demanded of you. The slightest perception of any conduct unbecoming of a Gentleman at the Bar on your part will raise great alarm in the minds of reasonable members of the Nigeria Society who will see you as a bad example to young lawyers and a bad role model in Society. You must therefore take to heart that your new status impose on you the duty to be honest truthful and just in your practice of law and in your everyday life.”

Vice-President, Professor Yemi Osibanjo, SAN GCON stated thus in 2018¹²:

“My Lords Senior Advocates of Nigeria, the elite in every community whether it be an ethnic, religious or professional elite, owe a responsibility to that community. It is their duty to define the common purposes, the ethics, the vagues, what is acceptable and what cannot be tolerated in that community.

Above all, they owe a responsibility to preserve the community. The future, as it were, depends on their vision or lack of it. For the professional elite such as ourselves we owe a responsibility to ensure that the profession that preferred us to the rank that we occupy, that is the highest in our profession, continues to thrive and flourish.

First for the selfish reason that it confers greater respect and prestige on the rank we enjoy, second that we being leaders in the profession can even become more successful, but more importantly, for the altruistic and ultimately more enduring reason, that we leave a profession that continues to provide livelihood and prestige for generations after us.

Ultimately, the difference between the elite who build great and enduring societies or professions, and those who destroy the patrimony, is the extent to which the elite is willing to make sacrifices and constrain that innate selfishness that all human beings have.

Put differently, the seriousness with which an elite recognizes and honours the responsibility of privilege or perhaps what the French describe as ‘noblesse oblige’: the responsibility of nobility or the privilege, the responsibility of the elite to act with honour, to act with integrity, to act sometimes with kindness, and sometimes with generosity.”

¹² Vice President Prof Yemi Osinbajo, The Integrity and Credibility of the Legal Profession is Under Threat in Nigeria (2018) <https://medium.com/@VicePresidentNG/the-integrity-and-credibility-of-the-legal-profession-is-under-threat-in-nigeria-799e276c59dd>

In a nutshell, and generally, the Senior Advocate's duties to the society include:

1. Ensuring compliance with the Rule of law.
2. Being model citizens.
3. Paying your taxes as and when due.
4. Complying with all Money Laundering Laws etc. which are geared at making our society a better place to live.
5. Continue and offer to do pro bono work for the less fortunate.
6. Be a beacon in your society.

And to the profession it includes:

1. Complying with the Rules of Professional Conduct for Legal Practitioners.
2. Paying your bar and practicing fees as and when due.
3. Acting with integrity, discipline, and candour
4. Mentoring younger lawyers and encourage their growth and development.
5. Contributing to the development of the profession.
6. At all times to act as an officer of the court –
7. Being candid and fair in dealing with the court as it impacts the profession and the perception the society has of Senior Advocates. You are to assist the court.

As Senior Advocates, it behoves you to continue along those lines to improve and contribute to the growth of the profession and the improvement of the society. As Chief Justice Onnoghen observed during the swearing-in of SANs in 2017, the senior advocate must never abuse his position nor regard his rank as a weapon of intimidation or a licence for rudeness or arrogance.¹³ He also noted during the 2018/2019¹⁴ swearing in ceremony that:

"...as members of the Inner Bar, you now occupy positions of trust and great responsibility. Expectedly, you must exhibit every virtue of excellence, integrity and diligence at all times. You must also remember your duties to the courts as custodians of justice."

The society counts on lawyers and indeed Senior Advocates to aid in the development of the law and the society, and not to perpetuate unfortunate stereotypes that suggest Senior Advocates are always involved when there are disruptions in the profession. The fact that you have been conferred with the rank does not mean you should not continue on the path that brought you success.

¹³ Onnoghen CJN, A Speech to Mark the Commencement of the 2017/2018 Legal year and the Swearing-In of New SANs, page 14.

¹⁴ <https://punchng.com/your-san-rank-can-be-withdrawn-cjn-warns-lawyers/>

I wish you all the best in the next phase of your professional lives.

Thank you for listening.

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